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September 25, 2026

VIA NYSCEF AND ELECTRONIC MAIL

Honorable Brendan T. Lantry
New York County Supreme Court
71 Thomas Street, Room 103
New York, NY 10013

**Re: 453580/2026, *Kenilworth Holdings LLC et al v. New York City Rent Guidelines Board et al*
Letter re: TRO and Preliminary Injunction**

Dear Justice Lantry:

At the conclusion of yesterday's hearing, I apprised the Court that, given the impending October 1 effective date of the new "zero-zero" rent guidelines, Petitioners-Plaintiffs ("Petitioners") may "immediately" move for a TRO. I respectfully write to apprise the Court that we are going to forbear, for the time being, for the reasons explained here. We understand that the City Respondent is now compelled to "provide the parties and the court with screenshots of all communications responsive to petitioners-plaintiffs' discovery demands by September 29, 2026." NYSCEF Doc. No. 239. We intend to evaluate that production carefully before determining what steps, if any, may be necessary in regard to seeking emergency relief. We also appreciate how diligently the Court is working to resolve this case on the merits, which is obviously preferable to interim relief. And we are mindful of the fact that, in addition to seeking to invalidate this RGB rent freeze decision on the ground that this was a sham process to reach a predetermined outcome, we have also moved to invalidate it on the independent ground that it is an arbitrary, capricious and irrational decision, in violation of law, because the RGB ignored its statutory mandate and own data in rendering it, which as discussed, is separate from and unrelated to a finding of a sham process. Of note, we are proceeding on the assumption that, this time, the City Respondent will comply with this Court's order, so we will await the City Respondent's "screenshot" production next Tuesday, September 29, before making any further decisions in this regard.

However, as my co-counsel, Ms. Riegel, noted at the hearing, landlords are required by law to issue renewal leases to rent-stabilized tenants at least 90 days prior to the expiration of tenants' existing leases, which will continue on a rolling basis over the course of the next year as each lease approaches its expiration. As such, this Court's merits ruling, even if rendered after October 1, at a minimum will affect lease renewals through September 30, 2027. Therefore, we will continue to assess the need to seek emergency and interim relief as the case progresses in the coming days and promptly inform the Court of any evolution in our thinking.



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Respectfully,

/s/ Randy M. Mastro

Randy M. Mastro

cc:

All Counsel of Record (via Email and NYSCEF)